

Nirmala Devi v. President (Prabandhak Nideshak) Discom Committee, KESCO, Kanpur

High Court of Judicature at Allahabad · Division Bench · 9 May 2014 · Writ - C No. 26102 of 2014 · **Writ disposed of; Clause 8.0(5) Committee to decide pending application expeditiously if maintainable.**

HEADNOTE

A writ seeking expedition of a pending application before the Committee under Clause 8.0(5) of the U.P. Electricity Supply Code, 2005, is disposed of on the licensee's statement, without examining maintainability or merits, by directing that if the application is maintainable it be decided expeditiously in accordance with law.

FACTUAL SUMMARY

Nirmala Devi petitioned the Allahabad High Court for a direction that her application dated 9/13 May 2013, filed before the Committee constituted under Clause 8.0(5) of the U.P. Electricity Supply Code, 2005, be decided expeditiously. The sole respondent was the President (Prabandhak Nideshak) of the Discom Committee, KESCO, Kanpur. Counsel for KESCO submitted that if such an application was pending and maintainable, the Committee would take an expeditious decision in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::8.0(5)

expedition of pending Clause 8.0(5) Committee application

HOLDING

If the petitioner's application dated 9/13.5.2013, made in accordance with the prescribed procedure, is maintainable under Clause 8.0(5) of the U.P. Electricity Supply Code, 2005, the Committee may dispose of it in accordance with law as expeditiously as possible. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MAINTAINABILITY AND MERITS OF THE PENDING CLAUSE 8.0(5) APPLICATION

The writ was disposed of with a direction to decide the application in accordance with law if maintainable, without examining either issue. ¶ 1